

United States District Court for the District of South Carolina

Piedmont Booksellers Guild v. City of Norvale

Case No. SYN-DSC-26-CV-0107 Notice of Appeal Filed January 29, 2026

Notice is hereby given that defendant City of Norvale appeals to the United States Court of Appeals for the Fourth Circuit from the district court's January 23, 2026 order granting the Piedmont Booksellers Guild a preliminary injunction. The order is entered at ECF No. 17 and is appealable under 28 U.S.C. § 1292(a)(1). The City also identifies the January 28, 2026 order denying its district-court motion for a stay pending appeal, ECF No. 21, as an order related to the requested appellate relief and the administration of the injunction during review.

The City does not represent that this notice brings the unresolved merits of the Guild's complaint before the court of appeals as a final judgment. The appeal concerns the grant and terms of preliminary relief. The City preserves its position that the district court erred in its assessment of likely success, irreparable harm, the balance of equities, and the public interest, and that the injunction's operative language and security treatment do not satisfy Federal Rule of Civil Procedure 65. The City will comply with the injunction unless and until it is stayed, modified, or superseded by a lawful order.

The clerk is requested to transmit this notice and open the appellate matter in the ordinary course. No trial transcript exists. The January 19 preliminary-injunction hearing was reported electronically, and the parties will address transcript and record-designation obligations on the schedules prescribed by the applicable rules and any appellate notice. The City designates its municipal counsel below for service; the Guild remains represented by the counsel shown on the district docket.

Respectfully submitted January 29, 2026, by counsel for the City of Norvale. A certificate of electronic service states that the notice was served the same day on counsel for the Piedmont Booksellers Guild through the district court's filing system.